

Tentative Rulings

April 21, 2025

Department 44

2:30 p.m.

*****The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website). *****

CONSERVATORSHIPS

CONSERVATORSHIP OF JEREMY ERICKSON

Case Number: 24PC-0032531

This matter is on calendar for confirmation of filing of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. The Conservatorship Care Plan and Inventory and Appraisal have been filed, and are accepted by the Court. The conservator is still required to file Proof of Service of Notice of Conservatee's Rights, and proof of service of the Notice of Filing of the Inventory and Appraisal.

This matter is continued to **Monday, May 5, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing of the Proof of Service of Notice of Conservatee's Rights, and proof of service of the Notice of Filing of the Inventory and Appraisal. If the documents cannot be filed before the continued hearing date, the court may issue an Order to Show Cause Re monetary sanctions. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF GRETA GIVLER

Case Number: 23PC-0032165

This matter is on calendar for further proceedings on an Amended Petition to Address Actions of the Prior Power of Attorney, for Approval of a Reconstructed Account, and for Damages for Elder Abuse. The matter has not been properly noticed, as Lydia Giardetti is represented by counsel, and there is no proof of service on file showing service was made on the attorney of record. Respondent has also not been properly noticed. The Petition seeks monetary damages and therefore, the matter must be served on respondent in the manner for serving summons. Service by mail is insufficient to obtain jurisdiction over the respondent. The Court notes that citations previously issued for prior hearing dates, but there has never been a proof of personal service filed as to any notice or Petition on Respondent. The Court has previously raised this issue regarding obtaining jurisdiction over respondent. Finally, the Petition fails to sufficiently allege the necessary facts to warrant relief. Petitioner's allegations are based on information and that "with a reasonable opportunity for discovery the evidence will show" that Respondent wrongfully took the funds. The Court cannot grant relief without sufficient factual allegations of the underlying damages. It is likely that an evidentiary hearing will be necessary to establish the amount of damages. This matter is continued to **Monday, June 2, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner shall file and timely serve a

new Notice of Hearing for the continued hearing date. Respondent must be personally served with the Notice of Hearing and Amended Petition. **No appearance is necessary on today's date.**

CONSERVATORSHIP OF ARGENT HALE

Case Number: 23PC-0032036

This matter is on calendar for a Petition for Approval of Amended First and Final Account and Report of Conservator, and Petition for Fees. The matter has been properly noticed, with proof of service on file. The Petition fails to include a full accounting. The accounting only contains a summary of the account. No schedules are attached. Additionally, counsel's fees seem excessive; specifically, the number of hours to prepare the accounting, which is not a complete accounting. The request for attorney's fees is subject to being reduced to a reasonable number of hours based on the activities listed. In addition, the conservator's request for fees includes a period of time that overlaps with the prior order granting her conservator's fees. This matter is continued to **Monday, June 16, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner file and timely notice an Amended Petition which includes a full accounting including all schedules. The Court will retain the lodged account statements for the continued hearing date. The hearing currently scheduled for April 28, 2025, for receipt of an amended final accounting is hereby **VACATED**. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF MORGAN HAUPTMAN

Case Number: 25PC-0032785

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person. The matter has been properly noticed, with proof of service on file. The Citation has been filed with proper proof of service. Counsel has been appointed for the Conservatee. No objections have been raised. The Court has reviewed the Court Investigator's report, filed April 3, 2025, which recommends granting the Petition. The Court intends to **GRANT** the Petition, absent an appearance and objection as noted below. A proposed order was submitted and will be executed. The matter will be set for **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Care Plan and Proof of Service of Notice of Conservatee's Rights. The matter is set for **Monday, April 27, 2026, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**

CONSERVATORSHIP OF BELLA LICATA

Case Number: 24PC-0032712

This matter is on calendar for further proceedings on the Second Amended Petition for Appointment of a Conservator of the Person. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Court has reviewed the Court Investigator's report, filed April 3, 2025, which recommends granting the Petition. The Court intends to **GRANT** the Petition, absent an appearance and objection as noted below. A proposed order was submitted and will be executed. The matter will be set for **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Care Plan and Proof of Service of Notice of Conservatee's Rights. The matter is set for **Monday, April 27, 2026, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**

CONSERVATORSHIP OF PETER MITCHELL

Case Number: 24PC-0032302

This matter is on calendar for confirmation of filing the Final Account and Report. Nothing has been filed since the last hearing. This matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44**

for further proceedings regarding confirmation of filing the Final Account and Report. If a Final Account and Report cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Account and Report can be filed. Failure to file either the Final Account and Report or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Account and Report, and failure to comply with the Court's order. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF JOHN SHADWELL

Case Number: CVPG03-0023876

This matter is on calendar for confirmation of filing of the Final Account and Report. Nothing has been filed since the last hearing. This matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44** for further proceedings regarding confirmation of filing the Final Account and Report. If a Final Account and Report cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Account and Report can be filed. Failure to file either the Final Account and Report or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Account and Report, and failure to comply with the Court's order. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF BEATRICE WORK

Case Number: 24PC-0032602

This matter is on calendar for confirmation of filing the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. None of the required documents have been filed. A Status Report has not been filed.

This matter is also on calendar for a Notice of Motion to Withdraw Conservatorship. It appears the Petitioner is effectively requesting to terminate the conservatorship. The matter has not been properly noticed. All parties entitled to notice must be served at least 15 days before the hearing; notice was provided only 10 days in advance of the hearing. The conservatee has not been served. Further, the petition is not verified, as required by California Rule of Court 7.103. The Court notes that only one of the conservators has filed the petition.

The matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44** for confirmation of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. The matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44** for further proceedings on the Motion to Withdraw. To move forward with the Petition, an amended petition must be filed curing the defect above, and a new Notice of Hearing for the continued hearing date must be timely filed and served on all parties entitled to notice. The clerk is directed to provide a copy of today's minutes to the Court Investigator's office so they can conduct an investigation regarding the Petition to terminate. **No appearance is necessary on today's calendar.**

ESTATES

ESTATE OF GERALD BALES

Case Number: 24PB-0032303

This matter is on calendar for further proceedings regarding a Petition for Final Distribution. An Amended Petition has not been filed curing the defects noted at the last hearing. However, the personal representative has filed a Status Report indicating that additional time is needed before an Amended Petition can be filed. This matter is continued to **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner shall timely file and serve a new Notice of Hearing for the continued hearing date. If an Amended Petition and Notice of Hearing cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date. Failure to file either the Amended Petition and Notice of Hearing or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration, and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the August 25, 2025, hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF IOLA BOYD

Case Number: 25PB-0032879

This matter is on calendar for a Petition to Determine Succession to Real Property. The matter has been properly noticed, with proof of service on file. The Court notes that the Petition seeks the transfer of personal property. This procedure can no longer be utilized to transfer personal property. Also, this procedure can only be utilized for the transfer of the decedent's primary residence. Insufficient information has been provided to indicate that this real property was the decedent's primary residence. The will attached to the Petition indicates that all property shall pass to decedent's surviving spouse (Harvey Boyd). Harvey survived Iola, which means the property passed to him upon her death. Harvey passed away in June of 2024; therefore, the property can only be properly distributed to the personal representative of his estate. Teri Mantz is not a successor in interest of Iola Boyd, and is not a proper petitioner. The Petition is **DENIED** without prejudice. **No appearance is necessary on today's calendar.**

ESTATE OF DARLENE BROOKS

Case Number: 24PB-0032722

This matter is on calendar for further proceedings on a Spousal Property Petition. An objection has been filed. The Court has previously indicated that the Petitioner has no standing to bring the Petition, and has indicated its tentative ruling is to deny the Petition. The matter was continued at the parties' request. **An appearance is necessary on today's calendar to discuss further proceedings.**

ESTATE OF JOHN BROOKS

Case Number: 24PB-0032723

This matter is on calendar for further proceedings on a Petition for Letters of Administration. An objection has been filed, which indicates that the decedent did not die intestate, but died with a will. No Amended Petition has been filed curing the defects noted at the hearing on December 30, 2024. **An appearance is necessary on today's calendar to discuss further proceedings.**

ESTATE OF RICHARD CASEY

Case Number: 23PB-0032064

This matter is on calendar for hearing on an Amended Final Report, Waiver of Account, and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that no original Waiver of Account has been filed. Petitioner has attached a photocopy of the waivers to the Petition. The matter is continued to **Monday, May 19, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Upon filing of the original waivers, the Petition can be granted. **No appearance is necessary on today's calendar.**

ESTATE OF JANICE CHAPMAN KLADT

Case Number: 24PB-0032350

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, April 27, 2026, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court ORDERS the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF CANDACE COLLINS

Case Number: CVPB20-0030822

This matter is on calendar for receipt of an Amended Order of Distribution to comply with the Court's order of January 13, 2025. An amended order has been lodged. However, the purpose of the amended order for distribution was to correct a defect in title created by the prior order for distribution. This proposed order does not indicate that an interest in real property is being transferred, and there is no legal description of the real property. The matter is continued to **Monday, May 19, 2025, at 2:30pm in Department 44** for further proceedings regarding receipt of an Amended Order of Distribution in compliance with the Court's previous orders. The clerk is directed to mail a copy of today's minutes to the personal representative at the address indicated on the Substitution of Attorney filed October 18, 2023. **No appearance is necessary on today's calendar.**

ESTATE OF PHILIP CORCORAN

Case Number: 24PB-0032528

This matter is on calendar for confirmation of filing the Inventory and Appraisal and for hearing on an Order to Show Cause re: Monetary Sanctions. The Inventory and Appraisal has not been filed. No response to the Order to Show Cause has been filed. **An appearance is necessary on today's calendar to address the Order to Show Cause. Failure to appear will result in the imposition of sanctions in the amount of \$250.00 and the issuance of an Order to Show Cause re: Removal of the Personal Representative.**

ESTATE OF NATHAN DAVIS

Case Number: CVPB21-0031378

This matter is on calendar for hearing on an Order to Show Cause Re: Monetary Sanctions. No response to the Order to Show Cause has been filed. **An appearance is necessary on today's calendar to address the Order to Show Cause. Failure to appear will result in the imposition of sanctions in the amount of \$250.00 and the issuance of an Order to Show Cause re: Removal of the Personal Representative.**

ESTATE OF LARRY DEBOER

Case Number: 23PB-0032278

This matter is on calendar for hearing on an Amended Final Report, Waiver of Account, and Petition for Final Distribution. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that both the Verification and attached Waiver of Account do not contain original signatures, and the Petition fails to comply with CRC 2.303 and Local rule 15.19 to qualify as a "fax filing." The matter is continued to **Monday, May 19, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Upon submitting the original verification and waiver of account, the Petition can be granted. **No appearance is necessary on today's calendar.**

ESTATE OF JOANNE DEKRUSE

Case Number: 23PB-0032194

This matter is on calendar for hearing on the Petition for Final Distribution and Waiver of Accounting. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed order was submitted and will be executed. The matter is set for **Monday, June 30, 2025, at 2:30 p.m. in Department 44** to confirm filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF JEREMY DUNKASON

Case Number: 24PB-0032629

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Final Inventory and Appraisal filed on March 20, 2025, is accepted by the Court, despite the fact that item 4 incorrectly states that no probate referee is required by order of the court dated November 4, 2024. The Court's order Dated November 4, 2024, specifically appointed Michael Howard as probate referee. As it appears that there are no assets to be appraised by the probate referee, it would be appropriate to check the first box in Item 4, but not the second. The Court notes the future court date of November 10, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF JEANNETTE FOX

Case Number: 23PB-0032012

This matter is on calendar today to confirm the filing of Receipts and Petition for Final Discharge. Receipts have been filed. There is no Petition for Final Discharge on file. The personal representative has submitted a status report requesting additional time to close the estate. The matter is continued to **Monday, June 23, 2025, at 2:30 p.m. in Department 44** to confirm filing of the Petition for Final Discharge. If a Petition for Final Discharge cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the Petition for Final Discharge can be filed. **No appearance is necessary on today's calendar.**

ESTATE OF DEBRA GALVEZ

Case Number: 25PB-0032842

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The Petitioner is an exempt government agency and therefore a bond is not required. The matter is set for **Monday, September 8, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, April 27, 2026 at 2:30 p.m. in Department 44** for Status of Administration. The personal representative is **ORDERED** to comply with Probate Code section 12200 et seq.

This matter is also on calendar for a Petition for Appointment of Guardian Ad Litem for both James Galvez and Rafael Galvez. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petitions are **GRANTED**. **No appearance is necessary on today's calendar.**

ESTATE OF MICHAEL GEORGE

Case Number: 24PB-0032619

This matter is on calendar for hearing on the Final Report and Petition for Final Distribution on waiver of account. An Irrevocable Assignment of Beneficial Interest was filed December 4, 2025, assigning all of Christina George's interest in the estate to Lom M. and Deena C. Tatom, Trustees of the Tatom 2001 Trust. The Petition for Final Distribution fails to account for this assignment and improperly distributes the whole of the estate to Christina George. As such, the Waiver of Accounting filed March 18, 2025, by Ms. George is without effect. The personal representative is not required to account if all persons entitled to distribution execute and file a written waiver, or a written acknowledgement that their interest in the estate has been satisfied, or if the personal representative demonstrates that adequate provision has been made for the satisfaction of that person's interest. Probate Code 10954(a). Lom M. and Deena C. Tatom are entitled to distribution, have not executed a written waiver filed with the Court, and the Petition does state provisions for the satisfaction of their interest. Further, the matter has not been properly noticed. Due to the assignment, Lom M. and Deena C. Tatom are entitled to notice. This matter is continued to **Monday, June 2, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Final Report and Petition for Final Distribution. Petitioner is ordered to file an Amended Petition accounting for the assignment. Petitioner shall also file and timely serve a Notice of Hearing for the continued hearing date. The court notes that the proposed order does not include any distribution provision. **No appearance is necessary on today's calendar.**

ESTATE OF LOUISE GIUDICE

Case Number: 24PB-0032691

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Partial Inventory and Appraisal was filed on March 28, 2025, and is accepted by the Court. The matter is continued to **Monday, June 9, 2025, at 2:30 p.m. in Department 44** for confirmation of the filing of the Final Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and

Appraisal, and failure to comply with the Court's order. The Court notes the future date of December 15, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF DIANA GRAHAM

Case Number: 25PB-0032835

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. No bond is required and letters shall issue. The matter is set for **Monday, September 8, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, April 27, 2025, at 2:30 p.m. in Department 44** for Status of Administration. The personal representative is **ORDERED** to comply with Probate Code section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF HARVEY HALLER

Case Number: 23PB-0031954

This matter is on calendar to confirm the filing of Receipts and Petition for Final Discharge. A status report has been filed indicating additional time is needed to close the estate. The matter is continued to **Monday, June 23, 2025, at 2:30 p.m. in Department 44** to confirm filing of Receipts and the Petition for Final Discharge. If the Receipts and Petition for Final Discharge cannot be filed prior to the next hearing date, the Court **ORDERS** a Status Report be filed and served at least five court days before the next hearing to advise what must be accomplished before the Petition for Final Discharge can be filed. The Court note that a document has been filed by counsel for the personal representative purportedly "to clear probate examiner notes." Counsel is advised that Shasta County does not have probate examiners and does not issue probate examiner notes. **No appearance is necessary on today's calendar.**

ESTATE OF MORGAN HARVIN

Case Number: 24PB-0032458

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. At the last hearing the clerk was directed to mail a copy of the minutes to the personal representative; however, there is no indication this was done. This matter is continued to **Monday, June 2, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of November 10, 2025, for Status of Administration. The clerk is directed to mail a copy of today's minutes to the personal representative. **No appearance is necessary on today's calendar.**

ESTATE OF CAROLINE HYATT

Case Number: 24PB-0032304

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. This matter is continued to **Monday, June 16, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a

Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed.

The matter is also on calendar for an Order to Show Cause Re: Monetary Sanctions (OSC). At the hearing on February 10, 2025, the Court ordered an OSC to issue to the personal representative, Patrick Gerard. Inadvertently, an OSC did not issue. At the hearing on March 17, 2025, the Court again issued the OSC. Inadvertently for a second time, an OSC did not issue. The Court will re-issue the prior Order to Show Cause to Mr. Gerard for his failure to timely file the Inventory and Appraisal and failure to file a Status Report at ordered by the Court December 9, 2025. The hearing on the Order to Show Cause is set for **Monday, June 16, 2025, at 2:30 p.m. in Department 44.** The clerk is directed to prepare a separate Order to Show Cause and to mail a copy of today's minutes to Mr. Gerard. The Court notes the future date of August 4, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF RUSSELL HUNT

Case Number: CVPB22-0031446

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES LOGAN

Case Number: 24PB-0032659

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. The Court notes Letters have not issued because confirmation of the issuance of a bond in the amount of \$4,707,688.15 has not been submitted. This matter is continued to **Monday, May 19, 2025, at 2:30 p.m. in Department 44** for confirmation of issuance of a bond and filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of December 15, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF LEONARD MALITZ

Case Number: CVPB22-0031410

This matter is on calendar for Status of the Accounting and an Order to Show Cause. On November 25, 2024, the Court removed the prior personal representative Teresa Malitz and ordered her to file an accounting no later than February 10, 2025. The accounting has still not been filed. As a result, on March 18, 2025, the Court issued an Order to Show Cause re: Monetary Sanctions to Teresa Malitz for

her failure to file the Accounting and failure to appear for the March 10, 2025 hearing. **An appearance is necessary on today's calendar to provide the Court with a status of the accounting and to address the Order to Show Cause. Failure to appear will result in the imposition of sanctions in the amount of \$250.00 and the issuance of an Order to Show Cause re: Monetary Sanctions in the amount of \$500.00.**

ESTATE OF MICHAEL MATOUS

Case Number: 23PB-0032108

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered by the Court on November 18, 2024. The matter is continued to **Monday, May 19, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **AGAIN ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the May 19, 2025, date. The clerk is instructed to mail a copy of today's minute order to the Personal Representative. **No appearance is necessary on today's calendar.**

ESTATE OF SHANE MILLER

Case Number: CVPB14-0028070

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The court notes that new counsel has recently substituted in for the personal representative. The matter is continued to **Monday, May 19, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the May 19, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF SANDY MILLER

Case Number: CVPB16-0028704

This matter is on calendar because it is trailing the related matter of the Estate of Shane Miller (28070). As the Estate of Shane Miller was continued to May 19, 2025, this matter will be continued to **Monday, May 19, 2025, at 2:40 p.m. in Department 44** to continue to trail the related case. **No appearance is necessary on today's calendar.**

ESTATE OF FRED MITCHELL, JR.

Case Number: CVPB16-0028776

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed as ordered by the Court on October 21, 2024. The matter is continued to **Monday, May 19, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **AGAIN ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with

Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the May 19, 2025, date. The clerk is instructed to mail a copy of today's minute order to the Personal Representative. **No appearance is necessary on today's calendar.**

ESTATE OF STEPHEN MORRILL

Case Number: 24PB-0032326

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, May 19, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the May 19, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF SONDRA MUMAW

Case Number: 23PB-0032102

This matter is on calendar for hearing on a Petition for Final Distribution and Waiver of Accounting. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed order was submitted and will be executed. The matter is set for **Monday, June 30, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA NIERENBERG

Case Number: 25PB-0032814

This matter is on calendar for further proceedings regarding a Petition to Determine Succession to Real Property. No amended Petition has been filed. A status report has been filed, which indicates additional time is needed before the amended Petition can be filed. This matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44** for further proceedings on the Petition. An Amended Petition and Notice of Hearing must be timely filed and served prior to the next hearing. If Petitioner fails to file an Amended Petition and Notice of Hearing for the continued date, the Court intends to deny the Petition at the next hearing. **No appearance is necessary on today's calendar.**

ESTATE OF LOUISE PESETTI

Case Number: 24PB-0032636

This matter is on calendar for hearing on a Petition for Determination of Entitlement to Estate Distribution filed by the Public Administrator. The matter appears to have been properly noticed, with proof of service on file.

As to Mr. Dugan's Petition for Letters of Administration, the Court notes that none of the previously identified issues have been addressed. The Amended Petition states that a bond is not required because all heirs are adults and have signed a waiver, however only two of the many listed heirs have signed a waiver. Proof of publication has still not been filed and must be completed. **An**

appearance is necessary on today's calendar to address all Petitions and possibly set a contested hearing.

ESTATE OF BENNETT RIFFEL

Case Number: CVPB19-0030280

ESTATE OF MELVIN RIFFEL

Case Number: CVPB19-0030282

This matter is on calendar for confirmation of filing a Petition for Discharge and for hearing on an Order to Show Cause Re: Sanctions. A response to the OSC has been filed which indicates additional time is needed before a Petition for Discharge can be filed. In light of the response, the OSC is **VACATED**. The matter is continued to **Monday, June 23, 2025, at 2:30 p.m. in Department 44** for further proceedings regarding a Petition for Discharge. If a Petition for Discharge cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Discharge is noticed for a different date, the Court will vacate the June 23, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF RYAN

Case Number: 23PB-0032131

This matter is on calendar for hearing on an Order to Show Cause. The court notes that receipts have now been filed, and a Petition for Discharge has been executed. The Order to Show Cause is **VACATED**. **No appearance is necessary on today's calendar.**

ESTATE OF DENNIS SMITH

Case Number: CVPB21-0030929

This matter is on calendar for Status of Administration. The Court previously removed the Personal Representative, and the file remains open in order for Attorney Pickering to provide the Court with an update as to whether his clients have a plan to continue the administration. Further, the Court continued this matter at the last hearing to allow Counsel to meet and confer about disclosing all assets, property, and necessary documentation. Nothing has been filed since the last hearing. **An appearance is necessary on today's calendar to address the status of the administration.**

ESTATE OF DENNIS STINE

Case Number: 24PB-0032646

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. No Status Report has been filed. This matter is continued to **Monday, June 2, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of December 15, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF VIOLET SULLIVAN

Case Number: 24PB-0032669

This matter is on calendar to confirm filing of the Final Inventory and Appraisal. The Court previously continued the matter to allow the Personal Representative to file a Corrected Final Inventory and Appraisal curing the defects noted at the hearing on March 10, 2025. Nothing has been filed since the last hearing. The matter is continued to **Monday, May 19, 2025, at 2:30pm in Department 44** for confirmation of filing of the Final Inventory and Appraisal. The Personal Representative shall file a Corrected Final Inventory and Appraisal. If a Corrected Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Corrected Final Inventory and Appraisal can be filed. Failure to file either the Corrected Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date November 10, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF AGNES TOWNSLEY

Case Number: CVPB94-0020229

This matter is on calendar to confirm the filing of Receipts and Petition for Final Discharge. A Petition for Discharge has been submitted, and the order has been executed by the Court. Today's hearing has been **VACATED. No appearance is necessary on today's calendar.**

ESTATE OF ROBERT TORNAI

Case Number: 24PB-0032316

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF JOSEPH WONG

Case Number: 24PB-0032709

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. However, the personal representative has filed a Status Report indicating that additional time is needed before the Final Inventory and Appraisal can be filed. This matter is continued to **Monday, July 21, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and

Appraisal, and failure to comply with the Court's order. The Court notes the future court date of December 15, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF JANET WRIGHT

Case Number: 23PB-0032006

This matter is on calendar for hearing on a Petition for Final Distribution. The matter has been properly noticed, with proof of service on file. No objections have been raised. An accounting has been properly waived. The paperwork appears to be in order, with the exception that the Petition does not indicate what assets are on hand for distribution. There is a reference to an Exhibit A; however, there is no Exhibit A attached to the Petition. The matter is continued to **Monday, June 9, 2025, at 2:30pm in Department 44** for further proceedings on the Petition for Final Distribution. Either an amended Petition or declaration, along with timely proof of service, is required that addresses the above defect. **No appearance is necessary on today's calendar.**

TRUSTS

IN RE: ROBERT ALLEN AND HAZEL PEARL BILLINGS TRUST

Case Number: 24PB-0032689

This matter is on calendar for further proceedings on a Petition to Modify Trust terms. The matter was continued to allow the filing of an amended Petition or amended proposed trust language. Petitioner has submitted consents from the two remainder beneficiaries of the Trust. With those consents having been filed, the Petition is **GRANTED**. A proposed order was submitted and will be executed by the Court. The clerk is directed to close the file upon processing the order. **No appearance is necessary on today's calendar.**

IN RE: GIVLER TRUST

Case Number: 23PB-0031977

This matter is on calendar for hearing on the Amended Petition for Order Determining Trust's Title to Personal Property, Damages, Double Damages and Attorney's Fees and Costs and for Damages for Elder Financial Abuse. The matter has not been properly noticed. The Petition has been brought under Probate Code Section 850 and therefore the Respondent is entitled to personal service. The Petition seeks monetary damages and therefore, the matter must be served on respondent in the manner for serving summons. Service by mail is insufficient to obtain jurisdiction over the respondent. The Court has previously raised this issue regarding obtaining jurisdiction over respondent. Finally, the Petition fails to sufficiently allege the necessary facts to warrant relief. Petitioner's allegations are based on information and that "with a reasonable opportunity for discovery the evidence will show" that Respondent wrongfully took the funds. The Court cannot grant relief without sufficient factual allegations of the underlying damages. It is likely that an evidentiary hearing will be necessary to establish the amount of damages. This matter is continued to **Monday, June 2, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner shall file and timely serve a new Notice of Hearing for the continued hearing date. Respondent must be personally served with the Notice of Hearing and Amended Petition. **No appearance is necessary on today's date.**

IN RE: KADENCE RENEE PODLAS TRUST

Case Number: CVPB20-0030697

This matter is on calendar to confirm filing of the Fifth Account. The Fifth Account has been filed and is noticed for hearing on April 28, 2025. That date is confirmed. Today's hearing has been **VACATED**. **No appearance is necessary on today's calendar.**

IN RE MARIANNE VLASOFF SPECIAL NEEDS TRUST

Case Number: CVPB20-0030839

This matter is on calendar to confirm filing of the Final Accounting. The Final Accounting has not been filed. A noticed Status Report has been filed. The Trustee requests additional time to liquidate the assets and file a Final Account. This matter is continued to **Monday, October 27, 2025, at 2:30 p.m. in Department 44** to confirm filing of the Final Account. **No appearance is necessary on today's calendar.**